



Rent Act 1965

1965 CHAPTER 75

An Act to restore the right to retain possession of certain dwellings; to make further provision with respect to security of tenure, rents and premiums; to restrict evictions without due process of law; and for purposes connected with those matters. [8th November 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

REGULATED TENANCIES

Extension of application of Rent Acts

1.—(1) The Rent Acts shall apply, subject to the provisions **Regulated** of this section, to every tenancy of a dwelling-house the rateable **tenancies.** value of which on the appropriate day did not exceed, in Greater London £400, and elsewhere in Great Britain £200; and references (however expressed) in any enactment to a dwelling-house to which those Acts apply shall be construed accordingly.

(2) The Rent Acts shall not by virtue of this section apply to a tenancy of a dwelling-house unless they would, if amended in accordance with Part I of Schedule 1 to this Act, apply to that tenancy but for one or more of the following, that is to say—

- (a) that the rateable value of the dwelling-house at any date exceeded the value by reference to which at that date the application of the Rent Acts to a dwelling-house was limited by section 11(1) of the Rent Act 1957 or 1957 c. 25. any earlier Act; or

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(b) that the dwelling-house consists of premises falling within section 35 of the Act of 1954 or section 27 of the Scottish Act of 1954 (premises produced by conversion or erection completed after the commencement of that Act); or

1957 c. 25.

(c) that the tenancy was created as mentioned in section 11(2) of the Rent Act 1957, that is to say, by a lease or agreement coming into operation at or after the commencement of that Act.

1954 c. 56.

(3) This section shall not affect the application to any tenancy of Part II of the Landlord and Tenant Act 1954 or of the Tenancy of Shops (Scotland) Acts 1949 and 1964, and the Rent Acts shall not by virtue of this section apply to a tenancy to which that Part or the said Acts of 1949 and 1964 apply, without prejudice, however, to their application to any sub-let part of the premises comprised in it, or of section 41 of the Act of 1954 (protection of sub-tenants of parts of premises) at the coming to an end of the tenancy.

(4) In this Act “regulated tenancy” means —

(a) a tenancy to which the Rent Acts apply by virtue of this section; or

(b) a statutory tenancy arising on the termination of such a tenancy as is mentioned in paragraph (a) of this subsection.

(5) Where a tenancy to which the Rent Acts apply by virtue of this section (in this subsection referred to as a “contractual tenancy”) is followed by a statutory tenancy they shall be treated for the purposes of this Act as together constituting one regulated tenancy; and in this Act any rental period beginning before the termination of a contractual tenancy is referred to as a “contractual period”, and any rental period beginning while a regulated tenancy is a statutory tenancy as a “statutory period”.

(6) In their application to regulated tenancies the Rent Acts shall have effect subject to the amendments specified in Schedule 1 to this Act and to the other provisions of this Act (and without regard to any provision excluding their application by reason of the matters mentioned in paragraphs (a) to (c) of subsection (2) of this section).

(7) Nothing in this section shall affect the application of the Rent Acts to a tenancy to which they apply apart from this section.

Regulation of rent

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2. The rent payable under a regulated tenancy shall, instead of being controlled,—

Rent under regulated tenancy. 1957 c. 25.

(a) in England and Wales, by the Rent Act 1957 ;

(b) in Scotland, by the Rent Acts, the Scottish Act of 1954, and the said Act of 1957,

be regulated in accordance with the following provisions of this Act.

3.—(1) Where the rent payable for any contractual period of a regulated tenancy of a dwelling-house would exceed the limit specified in the following provisions of this section, the amount of the excess shall, notwithstanding anything in any agreement, be irrecoverable from the tenant.

Limit on contractual rent.

(2) Where a rent for the dwelling-house is registered under this Act the said limit shall be the rent so registered.

(3) Where no rent for the dwelling-house is registered under this Act (whether or not Part II of this Act is in operation in the area in which the dwelling-house is situated) the said limit shall, subject to any adjustment under section 4 of this Act, be—

(a) if not more than three years before the regulated tenancy began the dwelling-house was the subject of another regulated tenancy, the rent payable under that other tenancy (or, if there was more than one, the last of them) for the last rental period thereof ;

(b) in any other case, the rent payable under the terms of the lease or agreement creating the tenancy, as varied, if the tenancy began before the commencement of this Act, by any agreement made before that commencement.

4.—(1) The following provisions of this section shall apply in relation to a contractual period for which the limit imposed by section 3 of this Act is that specified in subsection (3) thereof ; and in those provisions—

Adjustment, before registration, of limit imposed by section 3.

“ the previous tenancy ” means the other regulated tenancy referred to in paragraph (a) of that subsection, and

“ the previous terms ” means the terms referred to in paragraph (b) of that subsection.

(2) Where, under the terms of a regulated tenancy, there is, as respects—

(a) the responsibility for any repairs, or

(b) the provision of services for the tenant by the landlord or a superior landlord, or

(c) the use of furniture by the tenant,

any difference compared with the terms of the previous tenancy or, as the case may be, the previous terms, such as to affect the

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(3) Where for any contractual period there is a difference between the amount (if any) of the rates borne by the landlord or a superior landlord in respect of the dwelling-house and the amount (if any) so borne during the last rental period of the previous tenancy, or, as the case may be, the first rental period for which the previous terms were agreed, the said limit shall be increased or decreased by the amount of the difference.

(4) Where for any contractual period there is an increase in the cost of the provision of the services (if any) provided for the tenant by the landlord or a superior landlord compared with that cost at the time the rent for the previous tenancy was agreed, or, as the case may be, the previous terms were agreed, such as to affect the amount of the rent which it is reasonable to charge, the said limit shall be increased by an appropriate amount.

(5) If an improvement has been effected in the dwelling-house and the improvement was completed after the commencement of this Act and after the time as from which the rent for the previous tenancy was agreed or, as the case may be, the previous terms were agreed, the said limit shall be increased by twelve and a half per cent. per annum of the amount expended on the improvement by the landlord or any superior landlord or any person from whom the landlord or any superior landlord derives title.

(6) Where the previous terms provide for a variation of the rent in any of the circumstances mentioned in the preceding provisions of this section the said limit shall not be further varied under this section by reason of the same circumstances.

(7) Any question whether, or by what amount, the said limit is increased or decreased by virtue of subsection (2) or subsection (4) of this section shall be determined by the county court or, in Scotland, the sheriff, and any determination under this subsection—

- (a) may be made so as to relate to past rental periods; and
- (b) shall have effect as respects rental periods subsequent to those to which it relates until revoked or varied by a fresh determination.

Limit of
rent during
statutory
periods.

5. Except as otherwise provided by the following provisions of this Part of this Act, where the rent payable for any statutory period of a regulated tenancy would exceed the rent recoverable for the last contractual period thereof, the amount of the excess shall, notwithstanding anything in any agreement, be irrecoverable from the tenant.

6.—(1) Where no rent is registered under this Act for a dwelling-house then, whether or not Part II of this Act is in force in the area in which the dwelling-house is situated, the following provisions of this section shall have effect with respect to the rent recoverable for any statutory period under a regulated tenancy of the dwelling-house.

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Variation,
before
registration,
of rent
recoverable
during
statutory
periods.

(2) Where any rates in respect of the dwelling-house are, or were during the last contractual period, borne by the landlord or a superior landlord, then for any statutory period for which the amount of the rates, ascertained in accordance with Schedule 2 to the Rent Act 1957, differs from the amount, so ascertained, of the rates for the last contractual period the recoverable rent shall be increased or decreased by the amount of the difference; but the increase shall not take effect except in pursuance of a notice of increase served by the landlord on the tenant and specifying the increase and the date from which it is to take effect. 1957 c. 25.

(3) The said date shall not be earlier than six weeks, or, in the case of a dwelling-house in Scotland, six months, before the service of the notice, and if it is earlier than the service of the notice, any rent unpaid shall become due on the day after the service of the notice.

(4) Where, for any statutory period, there is as respects—

(a) the provision of services for the tenant by the landlord or a superior landlord, or

(b) the use of furniture by the tenant,

or any circumstances relating thereto any difference, in comparison with the last contractual period, such as to affect the amount of the rent which it is reasonable to charge, the recoverable rent for the statutory period shall be increased or decreased by an appropriate amount.

(5) Any question whether, or by what amount, the recoverable rent for any period is increased or decreased by virtue of subsection (4) of this section shall be determined by agreement in writing between the landlord and the tenant or by the county court or, in Scotland, the sheriff, and any such determination—

(a) may be made so as to relate to past statutory periods; and

(b) shall have effect as respects statutory periods subsequent to the periods to which it relates until revoked or varied by such an agreement or by the county court or sheriff.

(6) If an improvement has been effected in the dwelling-house and the improvement was completed after the commencement of this Act and after the time as from which the rent under the regulated tenancy was agreed, the recoverable rent for any

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statutory period beginning after the completion of the improvement shall be increased by twelve and a half per cent. per annum of the amount expended on the improvement by the landlord or any superior landlord or any person from whom the landlord or any superior landlord derives title; but the increase shall not take effect except in pursuance of a notice of increase served by the landlord on the tenant and specifying the increase and the date, which may be any date after the service of the notice, from which it is to take effect.

(7) A tenant on whom a notice specifying an increase authorised by the preceding subsection is served may, not later than one month after the service of the notice or such longer time as the court or sheriff may allow, apply to the county court or, in Scotland, the sheriff, for an order cancelling or reducing the increase on the ground that the improvement was unnecessary or that a greater amount was expended on it than was reasonable, and the court or sheriff may make an order accordingly and the order may relate to past as well as future statutory periods; but no application shall be made under this subsection if—

1958 c. 42.
1950 c. 34.
1959 c. 33.
1965 c. 16.

- (a) a grant has been made in respect of the improvement under section 30 of the Housing (Financial Provisions) Act 1958, section 111 of the Housing (Scotland) Act 1950, section 4 or 19 of the House Purchase and Housing Act 1959 or section 15 of the Airports Authority Act 1965, or
- (b) the tenant in writing consented to the improvement and acknowledged (in whatever terms) that the rent could be increased on account of the improvement.

Effect of
registration
on rent
recoverable
for statutory
periods.

7. Where a rent for a dwelling-house is registered under this Act the following provisions shall apply with respect to the rent for any statutory period of a regulated tenancy of the dwelling-house, that is to say—

- (a) if the rent payable for the statutory period would exceed the rent so registered, the amount of the excess shall, notwithstanding anything in any agreement, be irrecoverable from the tenant;
- (b) if the rent payable for the statutory period would be less than the rent so registered, it may be increased up to the amount of that rent by a notice of increase served by the landlord on the tenant and specifying the date from which the increase is to take effect, but the date so specified shall not be earlier than the date on which the rent was registered nor earlier than four weeks before the service of the notice.

8. In ascertaining for the purposes of this Act whether there is any difference, as respects rents or rates, between a rental period and another rental period (whether of the same tenancy or not) or the amount of any such difference, any necessary adjustment shall be made to take account of periods of different lengths; and for the purposes of such an adjustment a period of one month shall be treated as equivalent to one-twelfth of a year and a period of a week as equivalent to one fifty-second of a year.

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Adjustment for differences in lengths of rental periods.

9.—(1) A notice of increase under this Act must be in the prescribed form.

Notices of increase.

(2) Any such notice relating to statutory periods may be served during a contractual period.

(3) Where a notice of increase is served during a contractual period of a regulated tenancy and the tenancy could, by a notice to quit served by the landlord at the same time, have been brought to an end before the date specified in the notice of increase, the notice of increase shall operate to convert the tenancy into a statutory tenancy as from that date.

Conversion of certain existing controlled tenancies into regulated tenancies and release from rent regulation

10.—(1) Where a statutory tenancy subsisting under section 4 of the Requisitioned Houses and Housing (Amendment) Act 1955 would, but for this section, come to an end on 31st March 1966 by reason only of the limit on the operation of section 11(5) of the Rent Act 1957 as extended by the Protection from Eviction Act 1964, it shall not come to an end on that date but shall after that date be treated as a regulated tenancy.

Statutory tenancies of formerly requisitioned houses.
1955 c. 24.
1957 c. 25.
1964 c. 97.

(2) In relation to any rental period of such a tenancy beginning after the said date sections 5 and 6 of this Act shall have effect as if references therein to the last contractual period were references to the last rental period beginning before that date, and as if the rent recoverable for that period included any sum payable for that period by the local authority to the landlord under section 4(4) of the said Act of 1955.

(3) A statutory tenancy continued by virtue of this section shall be disregarded for the purposes of section 3(3)(a) of this Act.

11.—(1) Section 11(3) of the Rent Act 1957 (release from control) shall cease to have effect.

(2) In this section “existing controlled tenancy” means—

(a) a tenancy to which the Rent Acts apply apart from section 1 of this Act;

Power to convert existing controlled tenancies into regulated tenancies.

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(b) a statutory tenancy arising (whether before or after the commencement of this Act) on the termination of such a tenancy as is mentioned in paragraph (a) of this subsection.

(3) The Minister may by order provide as respects any area in England and Wales or in Scotland that where the rateable value on a date specified in the order of a dwelling-house in that area exceeded such amount as may be so specified and the dwelling-house is subject to an existing controlled tenancy the existing controlled tenancy shall be treated as a regulated tenancy, except in the case mentioned in subsection (7) of this section.

(4) An order under this section may contain such transitional provisions as appear to the Minister to be desirable.

(5) A tenancy or statutory tenancy to which an order under this section applies shall be disregarded for the purposes of section 3(3)(a) of this Act, and in relation to any rental period of such a statutory tenancy beginning after the order comes into operation sections 5 and 6 of this Act shall have effect as if references therein to the last contractual period were references to the last rental period beginning before the order comes into operation.

(6) A notice of increase served under section 7 of this Act in respect of an existing controlled tenancy which by virtue of an order under this section is treated as a regulated tenancy shall only be valid if the rent specified in it does not exceed by more than fifteen per cent. of the controlled rent the rent payable for the rental period beginning twelve months before the notice takes effect, except so far as the increase relates to such part of the rent registered under this Act as may in pursuance of the order be distinguished in the register as attributable to the provision of additional or improved services or furniture or the carrying out of an improvement; and in ascertaining for the purposes of this subsection the amount of the rent payable for any rental period, any amount payable in respect of rates borne by the landlord or a superior landlord shall be disregarded.

In this subsection "the controlled rent" means the rent payable for the last rental period beginning before the order comes into operation.

(7) The provision to be made by an order under this section with respect to an existing controlled tenancy which is one to which Part II of the Landlord and Tenant Act 1954 would have applied but for paragraph (c) of section 43(1) of that Act (or would have so applied had it been a tenancy within the meaning of that Act) shall be that the existing controlled tenancy shall be

treated for the purposes of that Act as a tenancy continuing by virtue of section 24 thereof after the expiry of a term of years certain.

(8) The power to make an order under this section shall be exercisable by statutory instrument and no such order shall have effect unless it is approved by a resolution of each House of Parliament.

12.—(1) Where the Minister is satisfied with respect to every part of an area in England and Wales or in Scotland that the number of persons seeking to become tenants there— Release from rent regulation.

(a) of dwelling-houses exceeding a specified rateable value, or

(b) of any class or description of dwelling-house or of dwelling-house exceeding a specified rateable value,

is not substantially greater than the number of such dwelling-houses in that part, he may by order provide that no such dwelling-house in the area shall be the subject of a regulated tenancy.

(2) An order under this section may contain such transitional provisions, including provisions to avoid or mitigate hardship, as appear to the Minister to be desirable.

(3) The power to make an order under this section shall be exercisable by statutory instrument and no such order shall have effect unless it is approved by a resolution of each House of Parliament.

New provisions affecting recovery of possession

13.—(1) The following provisions of this section shall apply on the death of the tenant under a statutory tenancy (in this section referred to as the first successor) whose right to retain possession by virtue of the Rent Acts arose on the death of the person who had been the tenant under a tenancy to which those Acts applied. Second transmission on death.

(2) If either—

(a) the first successor leaves a widow who was residing with him at his death; or

(b) the first successor is a woman or leaves no such widow but a member of his family was residing with him for not less than six months immediately before his death,

the widow or member of the first successor's family (or, if more than one, such of them as may in default of agreement be decided by the county court or, in Scotland, the sheriff) shall be the second successor for the purposes of this section and, except in the case mentioned in subsection (5) of this section,

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the right to retain possession by virtue of the Rent Acts shall pass to him.

(3) The second successor (except in the case mentioned in subsection (5) of this section) shall be the tenant under a regulated tenancy, whether or not the tenancy mentioned in subsection (1) of this section was one to which the Rent Acts applied by virtue of section 1 of this Act; but where the Rent Acts applied to that tenancy apart from that section—

(a) this Act shall apply in relation to the regulated tenancy as if the last rental period beginning before the death of the first successor had been a contractual period; and

(b) the regulated tenancy shall be disregarded for the purposes of section 3(3)(a) of this Act.

(4) In the Rent Acts and this Act the expression “tenant” shall include any person who retains possession by virtue of the preceding provisions of this section.

(5) If the statutory tenancy mentioned in subsection (1) of this section was one to which, had it been a tenancy within the meaning of the Landlord and Tenant Act 1954, Part II of that Act would have applied but for paragraph (c) of section 43(1) of that Act, the second successor shall be deemed for the purposes of that Act to be the tenant under a tenancy continuing by virtue of section 24 thereof after the expiry of a term of years certain.

1954 c. 56.

Recovery of possession of owner-occupied houses.

14.—(1) Where a person who has occupied a dwelling-house as his residence (in this section referred to as the owner-occupier) has let the dwelling-house on a regulated tenancy and the conditions mentioned in subsection (2) of this section are satisfied, then if—

(a) apart from the Rent Acts the landlord would be entitled to recover possession of the dwelling-house; and

(b) the court is satisfied that the dwelling-house is required as a residence for the owner-occupier or any member of his family who resided with the owner-occupier when he last occupied the dwelling-house as a residence;

the court shall make an order for the possession of the dwelling-house, whether or not it would have power to do so under section 3 of the Act of 1933, and section 5(2) of the Act of 1920 shall not apply in relation to the order.

(2) The said conditions are—

(a) that not later than the commencement of the tenancy (or if the tenancy was created before the commencement of this Act, not later than six months after the

commencement of this Act) the landlord has given notice in writing to the tenant that possession may be recovered under this section; and

- (b) that the dwelling-house has not since the commencement of this Act been let by the owner-occupier on a regulated tenancy with respect to which the condition mentioned in paragraph (a) of this subsection was not satisfied.

15.—(1) Where a dwelling-house is held for the purpose of being available for occupation by a minister of religion as a residence from which to perform the duties of his office and the dwelling-house has been let on a regulated tenancy, then if—

- (a) the tenant has been given notice in writing not later than the commencement of the tenancy (or, if the tenancy was created before the commencement of this Act, not later than six months after the commencement of this Act) that possession may be recovered under this section; and
- (b) apart from the Rent Acts the landlord would be entitled to recover possession of the dwelling-house; and
- (c) the court is satisfied that the dwelling-house is required for occupation by a minister of religion as such a residence;

the court shall make an order for the possession of the dwelling-house, whether or not it would have power to do so under section 3 of the Act of 1933, and section 5(2) of the Act of 1920 shall not apply in relation to the order.

(2) In the application of this section to Scotland for any reference to a minister of religion there shall be substituted a reference to a minister or full-time lay missionary of any religious denomination.

16.—(1) The following provisions of this section shall apply where a dwelling-house which was at any time occupied by a person under the terms of his employment as a person employed in agriculture has been let on a regulated tenancy to a person other than—

- (a) a person who is or at any time was so employed by the landlord; or
- (b) the widow of any such person as is mentioned in paragraph (a) of this subsection.

(2) If—

- (a) not later than the commencement of the tenancy (or, if the tenancy was created before the commencement of this Act, not later than six months after the commence-

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ment of this Act) the tenant has been given notice in writing that possession may be recovered under this section ; and

(b) apart from the Rent Acts the landlord would be entitled to recover possession of the dwelling-house ; and

(c) the court is satisfied that the dwelling-house is required for occupation by a person employed or to be employed by the landlord in agriculture ;

the court shall make an order for the possession of the dwelling-house, whether or not it would have power to do so under section 3 of the Act of 1933, and section 5(2) of the Act of 1920 shall not apply in relation to the order.

1948 c. 47.

1949 c. 30.

(3) In this section “employed”, “employment” and “agriculture” have the same meanings as in the Agricultural Wages Act 1948 or, in Scotland, the Agricultural Wages (Scotland) Act 1949.

Miscellaneous

Provisions
as to
improvements.

17.—(1) In this Act “improvement” includes structural alteration, extension or addition and the provision of additional fixtures or fittings, but does not include anything done by way of decoration or repair.

1958 c. 42.

1950 c. 34.

1959 c. 33.

1965 c. 16.

1956 c. 52.

(2) Where a grant has been made under section 30 of the Housing (Financial Provisions) Act 1958, section 111 of the Housing (Scotland) Act 1950, section 4 or 19 of the House Purchase and Housing Act 1959 or section 15 of the Airports Authority Act 1965 or a repayment has been made under section 12 of the Clean Air Act 1956 in respect of an improvement, the amount expended on the improvement shall for the purposes of this Act be taken as diminished by the amount of the grant or repayment.

1959 c. 25.

(3) Where works have been carried out on a street under—

(a) section 174, 189 or 190 of the Highways Act 1959, or

(b) any of the enactments referred to in section 1 of the Local Government (Street Works) (Scotland) Act 1956, or

1956 c. 40.

(c) the corresponding provisions of any local Act,

and any dwelling-house having access to the street is the subject of a regulated tenancy, the amount of any expenditure incurred after the commencement of this Act by the landlord or superior landlord in the carrying out of the works, or of any liability so incurred by the landlord or a superior landlord in respect of the works to the authority by whom they were carried out (whether the liability is dischargeable in a lump sum or by instalments, but in the case of instalments exclusive of interest), shall (whether or not apart from this subsection it would be so

treated) be treated for the purposes of this Act as expenditure incurred by the landlord or superior landlord on an improvement effected in the dwelling-house.

(4) For the purposes of the preceding subsection—

- (a) if benefit accrues from the carrying out of the works not only to the dwelling-house but also to other premises of the landlord or superior landlord, the amount to be treated as expenditure on an improvement effected in the dwelling-house shall be so much only of the expenditure or liability as may be determined by agreement in writing between the landlord and the tenant or by the county court or, in Scotland, the sheriff; and
- (b) the amount of any expenditure shall be treated as diminished by the amount of any contribution made in respect thereof under any enactment.

(5) Subsection (7) of section 6 of this Act shall not apply to any increase authorised by virtue of subsection (3) of this section.

18.—(1) The references to a controlled tenancy in section 20(3) of the Rent Act 1957 (which makes provision with respect to rent limited by conditions imposed under certain enactments, including enactments replaced by those mentioned in paragraphs (a) and (b) of this subsection) shall be construed as not including a regulated tenancy; and the said section 20(3) shall not apply in relation to any condition as to rent imposed after the commencement of this Act under—

Rents of
subsidised
private
houses.
1957 c. 25.

- (a) section 104(3) of the Housing Act 1957 (sale of houses by local authorities); or
- (b) section 46(1) of the Housing (Financial Provisions) Act 1958 (housing accommodation for members of the agricultural population provided under arrangements with local authorities);

but in relation to a condition so imposed—

- (i) the said section 104(3) shall have effect as if in paragraph (b) thereof the words “to the limit imposed by section 20 of the Rent Act 1957” were omitted; and
- (ii) the said section 46(1) shall have effect as if in paragraph (b) thereof for the words “the limit imposed by section 20 of the Rent Act 1957” there were substituted the words “such rent as the council may from time to time determine as being in its opinion the rent which it would have been appropriate for the council to charge if the house had been provided by the council”.

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1957 c. 25.

(2) A regulated tenancy commencing while a condition imposed under the enactments mentioned in paragraphs (a) and (b) of the preceding subsection or section 10(2) or 20(1) of the Rent Act 1957 is in operation shall be disregarded for the purposes of section 3(3)(a) of this Act.

Duty of landlord to supply statement of rent under previous tenancy.

19. Where the rent payable for a contractual period of a regulated tenancy is subject to the limit imposed by paragraph (a) of section 3(3) of this Act the landlord shall, on being so requested in writing by the tenant (whether during a contractual or a statutory period of the tenancy) supply him with a statement in writing of the rent which was payable for the last rental period of the other regulated tenancy referred to in that paragraph; and if, without reasonable excuse, he fails to do so within twenty-one days of receiving the request or supplies a statement which is false in any material particular, he shall be liable on summary conviction to a fine not exceeding fifty pounds and, on a second or subsequent conviction, to a fine not exceeding one hundred pounds.

Transitional

Tenancies ending before commencement of Act.

20.—(1) Where the tenancy of a dwelling-house has come to an end before the commencement of this Act and the tenancy would have been a regulated tenancy had this Act been then in force, then—

- (a) no order for the possession of the dwelling-house shall be made which would not be made if this Act had come into force before the termination of the tenancy; and
- (b) where a court has made such an order before the commencement of this Act but the order has not been executed, the court, if of opinion that the order would not have been made if this Act had been in force, may, on the application of the person against whom it was made, rescind or vary it in such manner as the court thinks fit for the purpose of giving effect to this Act.

(2) A person who retains possession by virtue of this section shall be deemed to do so under a statutory tenancy arising on the termination of a tenancy to which the Rent Acts applied by virtue of section 1 of this Act, and the terms as to rent and otherwise of that tenancy shall be deemed to have been the same, subject to any variations the court may specify, as those of the tenancy mentioned in subsection (1) of this section.

(3) A statutory tenancy deemed to arise by virtue of subsection (2) of this section shall be disregarded for the purposes of section 3(3)(a) of this Act.

(4) In the application of this section to Scotland, in subsection (1), for the expression "order for the possession of the dwelling-house" there shall be substituted the expression "decree of removing or warrant of ejection from the dwelling-house or other like order".

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PART II

REGISTRATION OF RENTS

21.—(1) This Part of this Act shall come into operation on such date as the Minister may by order appoint, and different days may be so appointed for different registration areas and, in England and Wales, for different parts of a registration area. Operation of Part II.

(2) The power to make an order under this section shall be exercisable by statutory instrument and includes power to vary or revoke any such order by a subsequent order.

22.—(1) The registration areas for the purposes of this Act shall, in England and Wales, be the areas of the following local authorities, that is to say, the councils of counties, county boroughs and London boroughs and the Common Council of the City of London; and for the purposes of this Act the area of the Common Council of the City of London shall be deemed to include the Inner Temple and the Middle Temple. Registration areas and rent officers in England and Wales.

(2) The Minister shall for every registration area make, after consultation with the local authority, a scheme providing for the appointment by the clerk to the local authority of such number of rent officers for the area as may be determined by or in accordance with the scheme and of deputy rent officers to exercise the functions of rent officers when rent officers are absent or incapacitated.

(3) A scheme under this section—

- (a) shall provide for the payment by the local authority to rent officers and deputy rent officers of remuneration and allowances in accordance with scales approved by the Minister with the consent of the Treasury;
- (b) shall prohibit the dismissal of a rent officer or deputy rent officer except by the clerk to the local authority on the direction or with the consent of the Minister;
- (c) shall require the local authority to provide for the rent officers office accommodation and clerical and other assistance;
- (d) shall allocate, or confer on the clerk to the local authority the duty of allocating, work as between the rent officers and shall confer on the clerk the duty of supervising the conduct of rent officers and deputy rent officers.

PART II
1937 c. 68.

1965 c. 51.
1965 c. 52.

(4) For the purposes of the Local Government Superannuation Act 1937 and any local Act scheme within the meaning of that Act rent officers and deputy rent officers appointed in pursuance of a scheme under this section shall be deemed to be officers in the employment of the local authority for whose area the scheme is made, and for the purposes of the National Insurance Act 1965 and the National Insurance (Industrial Injuries) Act 1965 they shall be deemed to be in that employment under a contract of service.

(5) References in this Act to the rent officer are references to any rent officer appointed for any area who is authorised to act in accordance with a scheme under this section.

(6) A scheme under this section may be varied or revoked by a subsequent scheme made thereunder.

(7) If different days are appointed under section 21 of this Act for different parts of a registration area a scheme under this section—

(a) shall be a separate scheme for such a part if it is made to take effect before this Part of this Act has come into operation in all parts of the area ; and

(b) may be such a separate scheme notwithstanding that it is made to take effect when this Part has come into operation in the whole of the area ;

and the preceding provisions of this section shall have effect, in relation to a scheme made for part of a registration area, as if the references to the registration area were references to that part.

(8) The Minister shall in respect of each financial year make to any local authority incurring expenditure which is attributable to this section a grant equal to that expenditure.

Default
powers of
Minister.

23.—(1) If the Minister is of opinion that a local authority have failed to carry out any functions conferred on them by a scheme under section 22 of this Act he may, after such inquiry as he may think fit, by order revoke the scheme and, without consulting the local authority, make another scheme under that section.

(2) A scheme made by virtue of subsection (1) of this section may confer functions otherwise exercisable by the local authority or the clerk to the local authority on a person appointed by the Minister, and that person may, if another local authority consent, be that other local authority or, as the case may be, the clerk to that other local authority.

(3) If the Minister is of opinion that the clerk to the local authority has failed to carry out any functions conferred on the clerk by a scheme under section 22 of this Act he may (after consultation with the local authority) exercise his power under

subsection (6) of that section by making a scheme providing for all or any of the functions otherwise exercisable by the clerk to be exercised by some other person.

(4) A scheme made by virtue of this section may contain such incidental and transitional provisions as appear to the Minister to be necessary or expedient.

24.—(1) In Scotland the registration areas for the purposes of this Act shall be—
Registration areas and rent officers in Scotland.

(a) the large burghs,

(b) the counties including any small burghs in each of them, and large burgh and small burgh shall have the meanings assigned to them in the Local Government (Scotland) Act 1947. 1947 c. 43.

(2) The Secretary of State shall for every registration area, after consultation with the local authority for that area, appoint such number of rent officers for the area as he may think fit; and for the purposes of this subsection the Secretary of State may, after consultation with the local authorities concerned, make such groupings of registration areas as may seem to him expedient.

(3) The Secretary of State may pay to rent officers such remuneration and allowances as he may, with the approval of the Treasury, determine, defray their expenses to such amount as he may with the like approval determine, and may provide them with such accommodation and services as they may require.

(4) The Secretary of State may, with the approval of the Treasury, make such arrangements to provide for the superannuation of rent officers as he may consider appropriate; and where such arrangements in respect of a rent officer are made with a local authority the rent officer shall for the purposes of the Local Government Superannuation (Scotland) Act 1937 and of any local Act scheme within the meaning of that Act be deemed to be an officer of that local authority. 1937 c. 69.

(5) References in this Act to the rent officer are references to any rent officer appointed for any area under this section.

(6) Any reference in this Act to a registration area shall include a reference to a grouping of registration areas.

25. There shall be constituted rent assessment committees in accordance with the provisions of Schedule 2 to this Act. Rent assessment committees.

26.—(1) The rent officer for any area shall prepare and keep up to date a register for the purposes of this Act and shall make the register available for inspection in such place or Register of rents.

PART II

places and in such manner as may be provided by the scheme made for the area under this Part of this Act or, in Scotland, as the Secretary of State may direct.

(2) The register shall contain, in addition to the rent payable under a regulated tenancy of a dwelling-house—

(a) the prescribed particulars with regard to the tenancy; and

(b) a specification of the dwelling-house.

(3) A copy of an entry in the register certified under the hand of the rent officer or any person duly authorised by him shall be receivable in evidence, and in Scotland shall be sufficient evidence of that entry, in any court and in any proceedings.

(4) A person requiring such a certified copy shall be entitled to obtain it on payment of the prescribed fee.

(5) Schedule 3 to this Act shall have effect with respect to applications for the registration of rents and the procedure to be followed on such applications and Schedule 4 to this Act shall have effect with respect to certificates of fair rent.

**Determination
of fair rent.**

27.—(1) In determining for the purposes of this Act what rent is or would be a fair rent under a regulated tenancy of a dwelling-house regard shall be had, subject to the following provisions of this section, to all the circumstances (other than personal circumstances), and in particular to the age, character and locality of the dwelling-house and to its state of repair.

(2) For the purpose of the determination it shall be assumed that the number of persons seeking to become tenants of similar dwelling-houses in the locality on the terms (other than those relating to rent) of the regulated tenancy is not substantially greater than the number of such dwelling-houses in the locality which are available for letting on such terms.

(3) There shall be disregarded—

(a) any disrepair or other defect attributable to a failure by the tenant under the regulated tenancy or any predecessor in title of his to comply with any terms thereof, and

(b) any improvement carried out, otherwise than in pursuance of the terms of the tenancy, by the tenant under the regulated tenancy or any predecessor in title of his.

**Amount to be
registered
as rent.**

28.—(1) The amount to be registered as the rent of any dwelling-house shall include any sums payable by the tenant to the landlord for the use of furniture or for services, whether or not those sums are separate from the sums payable for the occupation of the dwelling-house or are payable under separate agreements.

PART II

(2) Where any rates in respect of a dwelling-house are borne by the landlord or a superior landlord the amount to be registered under this Act as the rent of the dwelling-house shall be the same as if the rates were not so borne; but the fact that they are so borne shall be noted on the register and the amount of the rates for any rental period, ascertained in accordance with Schedule 2 to the Rent Act 1957, shall be added to the limit imposed by section 3(2) of this Act and shall, if the rental period is a statutory period, be recoverable, without service of a notice of increase, in addition to the sums recoverable from the tenant apart from this subsection. 1957 c. 25.

(3) Where, under a regulated tenancy, the sums payable by the tenant to the landlord include any sums varying according to the cost from time to time of any services provided by the landlord or a superior landlord or of any works of maintenance or repair carried out by the landlord or a superior landlord, the amount to be registered under this Act as rent may, if the rent officer is satisfied or, as the case may be, the rent assessment committee are satisfied, that the terms as to the variation are reasonable, be entered as an amount variable in accordance with those terms.

29. If any person fails without reasonable cause to comply with any notice served on him under paragraph 10 of Schedule 3 to this Act requiring him to give the information specified in the notice to a rent assessment committee, he shall be liable on summary conviction to a fine not exceeding fifty pounds and, on a second or subsequent conviction, to a fine not exceeding one hundred pounds. Failure to give information.

PART III

PROTECTION AGAINST HARASSMENT AND EVICTION WITHOUT DUE PROCESS OF LAW

30.—(1) If any person unlawfully deprives the residential occupier of any premises of his occupation of the premises or any part thereof or attempts to do so he shall be guilty of an offence unless he proves that he believed, and had reasonable cause to believe, that the residential occupier had ceased to reside in the premises. Unlawful eviction and harassment of occupier.

(2) If any person with intent to cause the residential occupier of any premises—

- (a) to give up the occupation of the premises or any part thereof; or
- (b) to refrain from exercising any right or pursuing any remedy in respect of the premises or part thereof;

PART III

does acts calculated to interfere with the peace or comfort of the residential occupier or members of his household, or persistently withdraws or withholds services reasonably required for the occupation of the premises as a residence, he shall be guilty of an offence.

(3) A person guilty of an offence under this section shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding six months or to both and, on a second or subsequent conviction, to a fine not exceeding five hundred pounds or to imprisonment for a term not exceeding six months or to both.

(4) Nothing in this section shall be taken to prejudice any liability or remedy to which a person guilty of an offence thereunder may be subject in civil proceedings.

(5) In this section "residential occupier", in relation to any premises, means a person occupying the premises as a residence, whether under a contract or by virtue of any enactment or rule of law giving him the right to remain in occupation or restricting the right of any other person to recover possession of the premises.

Restriction on
re-entry
without due
process of law.

31. Where any premises are let as a dwelling on a lease which is subject to a right of re-entry or forfeiture it shall not be lawful to enforce that right otherwise than by proceedings in the court while any person is lawfully residing in the premises or part of them.

Prohibition
of eviction
without due
process of
law.

32.—(1) Where any premises have been let as a dwelling under a tenancy which is not a protected tenancy within the meaning of this Part of this Act and—

- (a) the tenancy (in this Part of this Act referred to as the former tenancy) has come to an end; but
- (b) the occupier continues to reside in the premises or part of them;

it shall not be lawful for the owner to enforce against the occupier, otherwise than by proceedings in the court, his right to recover possession of the premises.

(2) For the purposes of this Part of this Act a person who, under the terms of his employment, had exclusive possession of any premises otherwise than as a tenant shall be deemed to have been a tenant and the expressions "let" and "tenancy" shall be construed accordingly.

(3) In this Part of this Act "the owner", in relation to any premises, means the person who, as against the occupier, is entitled to possession thereof; and in this section "the occupier", in relation to any premises, means any person lawfully residing

in the premises or part of them at the termination of the former tenancy.

(4) The preceding provisions of this section shall, with the necessary modifications, apply where the owner's right to recover possession arises on the death of the tenant under a statutory tenancy.

(5) Nothing in this section shall be taken to affect any rule of the law of Scotland prohibiting the securing of possession otherwise than by due process of law.

33.—(1) The following provisions of this section shall apply where the tenant under the former tenancy occupied the premises under the terms of his employment as a person employed in agriculture (as defined in section 17(1) of the Agricultural Wages Act 1948 or section 17 of the Agricultural Wages (Scotland) Act 1949). Special provisions with respect to agricultural employees. 1948 c. 47. 1949 c. 30.

(2) In this section "the occupier", in relation to any premises, means—

(a) the tenant under the former tenancy; or

(b) the widow or widower of the tenant under the former tenancy residing with him at his death or, if the former tenant leaves no such widow or widower, any member of his family residing with him at his death.

(3) Without prejudice to any power of the court apart from this section to postpone the operation or suspend the execution of an order for possession, if in proceedings by the owner against the occupier the court makes an order for the possession of the premises the court may suspend the execution of the order on such terms and conditions, including conditions as to the payment by the occupier of arrears of rent, mesne profits and otherwise as the court thinks reasonable.

(4) Where the court has under the preceding provisions of this section suspended the execution of an order for possession it may from time to time vary the period of suspension or terminate it and may vary any terms or conditions imposed by virtue of this section.

(5) In considering whether or how to exercise its powers under this section the court shall have regard to all the circumstances and, in particular, to the following, that is to say—

(a) whether other suitable accommodation is or can be made available to the occupier;

PART III

- (b) whether the efficient management of any agricultural land or the efficient carrying on of any agricultural operations would be seriously prejudiced unless the premises were available for occupation by a person employed or to be employed by the owner; and
- (c) whether greater hardship would be caused by the suspension of the execution of the order than by its execution without suspension or further suspension.

(6) Where in proceedings for the recovery of possession of the premises the court makes an order for possession but suspends the execution of the order by virtue of this section, it shall make no order for costs, unless it appears to the court, having regard to the conduct of the owner or of the occupier, that there are special reasons for making such an order.

(7) In the application of this section to Scotland—

- (a) for any reference to an order for possession there shall be substituted a reference to a decree of removing or warrant of ejection or other like order;
- (b) for the reference to mesne profits there shall be substituted a reference to compensation to the owner for loss of possession; and
- (c) for the reference to costs there shall be substituted a reference to expenses.

Meaning of
“protected
tenancy”.
1954 c. 56.

34. In this Part of this Act “protected tenancy” means—

- (a) a tenancy to which the Rent Acts apply or Part I of the Landlord and Tenant Act 1954 applies;
- (b) a tenancy to which Part II of the Landlord and Tenant Act 1954 applies;
- (c) a tenancy of an agricultural holding in England and Wales;
- (d) a tenancy to which any of the following Acts apply—
 - (i) the Small Landholders (Scotland) Acts 1886 to 1931;
 - (ii) the Tenancy of Shops (Scotland) Acts 1949 and 1964;
 - (iii) the Agricultural Holdings (Scotland) Act 1949;
 - (iv) the Crofters (Scotland) Acts 1955 and 1961.

1949 c. 75.

The court.

35.—(1) The court for the purposes of this Part of this Act shall be, subject to the following provisions of this section,—

- (a) in England and Wales, in relation to premises with respect to which the county court has for the time

being jurisdiction in actions for the recovery of land, the county court and, in relation to other premises, the High Court; and

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(b) in Scotland, the sheriff.

(2) Any powers of a county court in proceedings for the recovery of possession of any premises in the circumstances mentioned in section 32(1) of this Act may be exercised with the leave of the judge by any registrar of the court, except in so far as rules of court otherwise provide.

(3) Nothing in this Part of this Act shall affect the jurisdiction of the High Court in proceedings to enforce a lessor's right of re-entry or forfeiture or to enforce a mortgagee's right of possession in a case where the former tenancy was not binding on the mortgagee, or any jurisdiction of the Court of Session in relation to actions of removing.

(4) Nothing in this Part of this Act shall affect the operation of—

- (a) section 59 of the Pluralities Act 1838 ; 1838 c. 106.
- (b) section 19 of the Defence Act 1842 ; 1842 c. 94.
- (c) section 6 of the Lecturers and Parish Clerks Act 1844 ; 1844 c. 59.
- (d) section 13 of the Compulsory Purchase Act 1965 ; 1965 c. 56.
- (e) section 89 of the Lands Clauses Consolidation (Scotland) Act 1845 ; 1845 c. 19.
- (f) section 403 of the Burgh Police (Scotland) Act 1892 ; or 1892 c. 55.
- (g) paragraph 3 of Schedule 1 to the Sexual Offences Act 1956 c. 69.

(5) Until such day as the Minister may by order made by statutory instrument appoint, nothing in this Part of this Act shall affect the operation of the Small Tenements Recovery Act 1838 c. 74, 1838 in so far as it has been applied by any other Act or of section 22(2), 45(3), 73(2) or 85(2) of the Housing Act 1957. 1957 c. 56.

(6) An order under the preceding subsection may contain such transitional provisions as may appear to the Minister to be expedient.

(7) A statutory instrument containing such an order shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(8) Her Majesty may by Order in Council direct that subsection (1) of this section shall have effect as if the references therein to the county court included such other inferior court as may be specified in the Order ; and any such Order may be revoked or varied by a subsequent Order.

PART III
Application
to Crown.

36. In so far as this Part of this Act requires the taking of proceedings in the court for the recovery of possession or confers any powers on the court it shall be binding on the Crown.

PART IV

MISCELLANEOUS

Premiums.
1949 c. 40.

37.—(1) Section 2 of the Landlord and Tenant (Rent Control) Act 1949 (prohibition of premiums) shall be amended in accordance with Part I of Schedule 5 to this Act.

(2) Paragraph 5 of Schedule 1 to that Act (Premiums allowed on assignment where premium lawfully required on grant) shall be amended in accordance with Part II of Schedule 5 to this Act and, in relation to regulated tenancies, shall have effect subject to Part III of the said Schedule 5.

(3) In the application to Scotland of this section, Schedule 5 to this Act, and the said Act of 1949, "assignment" means assignation.

Restriction on
requiring
payment in
advance.
1957 c. 25.

38. Section 15 of the Rent Act 1957 (which restricts certain requirements for the payment in advance of rent under a tenancy granted, continued or renewed in circumstances to which section 13 of that Act applies) shall apply in relation to a regulated tenancy as it applies in relation to a tenancy granted, continued or renewed in those circumstances.

Furnished
houses.
1946 c. 34.
1964 c. 94.

39.—(1) The Furnished Houses (Rent Control) Act 1946 (in this section referred to as the Act of 1946) shall have effect subject to the following provisions of this section and shall not expire at the end of March 1966 (the date to which it was extended by the Expiring Laws Continuance Act 1964).

(2) The application of the Act of 1946 to any contract shall not be limited as mentioned in section 12 of the Rent Act 1957 but, subject to subsection (3) of this section,—

(a) the Act of 1946 shall not apply to a contract relating to any dwelling the rateable value of which on the appropriate day exceeded, in Greater London £400, and elsewhere in Great Britain £200 ;

(b) the Minister may by order provide that as from such date as may be specified in the order the Act of 1946 shall not apply to a contract (whether registered under that Act or not) relating to a dwelling the rateable value of which on such day as may be specified in the order exceeds such amount as may be so specified.

PART IV

(3) Where a contract referred to a tribunal under the Act of 1946 relates to a dwelling consisting of or comprising part only of a hereditament, and no apportionment of the rateable value of the hereditament has been made under this Act, then unless the lessor—

- (a) in the course of the proceedings requires that such an apportionment shall be made; and
- (b) within two weeks of making the requirement brings proceedings in the county court for the making of the apportionment;

the tribunal shall have jurisdiction to deal with the reference if it appears to them that had the apportionment been made they would have had jurisdiction.

(4) An order under subsection (2)(b) of this section—

- (a) may be made so as to relate to the whole of England and Wales or to such area in England and Wales as may be specified in the order, and so as to apply generally or only to, or except to, such classes or descriptions of dwellings as may be specified in the order;
- (b) may contain such transitional provisions as appear to the Minister to be desirable;
- (c) shall be made by statutory instrument;
- (d) shall not have effect unless it is approved by a resolution of each House of Parliament.

(5) The following provisions shall have effect with respect to contracts relating to dwellings situated in an area in which Part II of this Act is in force, that is to say,—

- (a) if such a contract creates a regulated tenancy, the Act of 1946 shall not apply to the contract;
- (b) if such a contract does not create a regulated tenancy but the dwelling to which it relates is a dwelling-house for which a rent is registered under this Act, the rent payable under the contract shall not be reduced in pursuance of the Act of 1946 below the amount which would be recoverable from the tenant under a regulated tenancy of the dwelling-house.

(6) An application under section 11 of the Landlord and Tenant (Rent Control) Act 1949 for the extension of the period 1949 c. 40. at the end of which a notice to quit takes effect—

- (a) may be made notwithstanding that the reference to a tribunal under the Act of 1946 was made after the service of the notice;
- (b) shall not be made where that period has been reduced by a direction under subsection (7) of this section.

PART IV

(7) Where a contract has been referred to a tribunal appointed under the Act of 1946 and the period at the end of which a notice to quit will take effect has been determined by section 5 of that Act or extended under section 11 of the said Act of 1949 then, if it appears to the tribunal, on an application made by the lessor for a direction under this subsection, that the lessee has not complied with the terms of the contract or that he or any person residing or lodging with him has been guilty of conduct which is a nuisance or annoyance to adjoining occupiers or has been convicted of using the dwelling or allowing the dwelling to be used for an immoral or illegal purpose or that the condition of the dwelling has deteriorated owing to any act or neglect of the lessee or any such person, the tribunal may direct that the said period shall be reduced so as to end at a date specified in the direction.

(8) For each reference in the said section 5 or the said section 11 to three months there shall be substituted a reference to six months.

(9) In section 9(2) of the Act of 1946 (penalty for failure to comply with a notice under section 2(1) of that Act) for the words from "twenty pounds" to the end there shall be substituted the words "fifty pounds and, on a second or subsequent conviction, to a fine not exceeding one hundred pounds".

1949 c. 40.

(10) References in the Act of 1946 to a party to a contract shall include references to any person directly or indirectly deriving title from such a party, and the expression "lessor" and "lessee" in the Act of 1946, the Landlord and Tenant (Rent Control) Act 1949 and this section shall accordingly include any person directly or indirectly deriving title from the lessor and the lessee respectively.

(11) No right to occupy a house or part of a house for a holiday shall be treated for the purposes of the Act of 1946 as a right to occupy it as a residence.

(12) This section shall apply to Scotland subject to the following modifications, that is to say,—

1946 c. 34.

(a) for any reference to the Furnished Houses (Rent Control) Act 1946, or section 5 thereof, there shall be substituted respectively a reference to the Rent of Furnished Houses Control (Scotland) Act 1943 and to that Act as read with section 17(7) of the Landlord and Tenant (Rent Control) Act 1949;

1943 c. 44.

(b) in subsection (3), for any reference to a hereditament and for the reference to the county court there shall be substituted respectively a reference to lands and heritages and to the sheriff;

- (c) in subsection (4), for any reference to England and Wales there shall be substituted a reference to Scotland ; and
- (d) in subsection (9) for the reference to section 9(2) of the Act of 1946 there shall be substituted a reference to section 7(2) of the said Act of 1943 (penalty for failure to give information required for registration under that Act), and the words in parenthesis shall be omitted.

PART IV

40.—(1) Where a person who has occupied a dwelling as a residence (in this section referred to as the owner-occupier) has, by virtue of a contract to which the Act of 1946 applies, granted the right to occupy the dwelling to another person and—

Notice to quit furnished house let by owner-occupier.

- (a) he has given notice in writing to that person, at or before the time when the right was granted (or, if it was granted before the commencement of this Act, not later than six months after the commencement of this Act) that he is the owner-occupier within the meaning of this section ; and
- (b) if the dwelling is part of a house, he does not occupy any other part of the house as his residence ;

section 5 of the Act of 1946 and section 11 of the Act of 1949 shall not apply to a notice to quit the dwelling, if at the time the notice is to take effect the dwelling is required as a residence for the owner-occupier or any member of his family who resided with him when he last occupied the dwelling as a residence.

(2) In this section “ the Act of 1946 ” means the Houses (Rent Control) Act 1946 ; and “ the Act of 1949 ” means the Landlord and Tenant (Rent Control) Act 1949.

1946 c. 34.

1949 c. 40.

(3) In the application of this section to Scotland for any reference to the Act of 1946 or section 5 thereof there shall be substituted respectively a reference to the Rent of Houses Control (Scotland) Act 1943 and to that Act as read with section 17(7) of the Act of 1949.

1943 c. 44.

41.—(1) Where a tribunal constituted under the Houses (Rent Control) Act 1946 acts for an area (whether consisting of one or more districts in which that Act is in force) wholly comprised in the area for which a panel is formed under Schedule 2 to this Act the Minister may direct the president of the panel to exercise on behalf of the Minister the power to appoint the chairman and other members of the tribunal and any person to act in the place of a member during the member’s absence or incapacity.

Appointment of rent tribunal by president of rent assessment panel.

PART IV

1958 c. 66.

(2) A person appointed by the president of a panel by virtue of a direction under this section shall be selected by the president from the panel; and while the direction is in force section 3 of the Tribunals and Inquiries Act 1958 (appointment of chairman) shall not apply to the tribunal, but the president shall appoint as chairman or person to act as chairman of the tribunal either himself or one of the other members of the panel appointed by the Lord Chancellor.

Mortgages of dwelling-houses to which Rent Acts apply.

42.—(1) Where—

- (a) any land consisting of or including a dwelling-house which is subject to a regulated tenancy is comprised in a legal mortgage created before the commencement of this Act and the tenancy is binding on the mortgagee; and
 - (b) the rateable value on the appropriate day of the dwelling-house together with that of any other such dwelling-house comprised in the mortgage is not less than one-tenth of the rateable value on the appropriate day of the whole of the land comprised in the mortgage; and
 - (c) the mortgagor is not in breach of his covenants (the covenant for the repayment of the principal money being disregarded for the purposes of this paragraph unless it provides for repayment by instalments); and
 - (d) the mortgage is not one to which the Rent Acts apply;
- the provisions of subsections (2) and (3) of this section shall apply in relation to the mortgage.

(2) Where—

- (a) the rate of interest payable in respect of the mortgage has been increased; or
- (b) a lower rent for a dwelling-house comprised in the mortgage has been registered under this Act than was payable immediately before the registration; or
- (c) the mortgagee, not being a mortgagee who was in possession at the commencement of this Act, has demanded payment of the principal money secured by the mortgage or has taken any steps for exercising any right of foreclosure or sale or for otherwise enforcing his security;

and the court, on an application made by the mortgagor within twenty-one days or such longer time as the court may allow, is satisfied that by reason thereof and of the operation of this Act the mortgagor would suffer severe financial hardship unless relief were given under this section, the court may by order make such provision limiting the rate of the interest, extending the time for the repayment of the principal money or otherwise

varying the terms of the mortgage or imposing any limitation or condition on the exercise of any right or remedy in respect thereof as to the court seems appropriate.

PART IV

(3) Where the mortgage comprises other land as well as a dwelling-house or dwelling-houses subject to a regulated tenancy and the court makes an order under the preceding subsection the order may, if the mortgagee so requests, make provision for apportioning the money secured by the mortgage between that other land and the dwelling-house or dwelling-houses; and where such an apportionment is made the other provisions of the order shall not apply in relation to that other land and the money secured by it, and the mortgage shall have effect for all purposes as two separate mortgages of the apportioned parts.

(4) The Rent Acts shall not apply to any mortgage created after the commencement of this Act and shall, in their application to any other mortgage, have effect subject to the following provision, that is to say, where the mortgagee satisfies the court that greater hardship would be caused if the restrictions imposed on the exercise of the mortgagee's rights and remedies by section 7 of the Act of 1920 continued to apply to the mortgage than if they were removed or modified the court may by order allow him to exercise such of those rights and remedies as may be specified in the order, on such terms and conditions as may be so specified.

(5) Where the court has made an order under this section it may vary or revoke it by a subsequent order.

(6) The court for the purposes of this section shall be the county court, except that where an application under subsection (2) of this section is made in pursuance of any step taken by the mortgagee in the High Court or the Court of Chancery of the County Palatine of Lancaster or the Court of Chancery of the County Palatine of Durham, it shall be that court.

(7) In this section "legal mortgage" includes a charge by way of legal mortgage and any charge registered under the Land Registration Act 1925.

1925 c. 21.

(8) This section shall apply to Scotland subject to the following modifications—

(a) for subsection (6) there shall be substituted the following subsection—

(6) The court for the purposes of this section shall be the sheriff, except that where an application under subsection (2) of this section is made in pursuance of any step taken by the creditor in the heritable security in the Court of Session it shall be that Court.

PART IV

1924 c. 27.

- (b) for any reference in this section to a legal mortgage or a mortgage there shall be substituted a reference to a heritable security, and for any reference to a mortgagor or a mortgagee there shall be substituted respectively a reference to the debtor in a heritable security and the creditor in a heritable security; and "heritable security" has the same meaning in this section as in the Conveyancing (Scotland) Act 1924 except that it includes a security constituted by *ex facie* absolute disposition or assignation;
- (c) for any reference to a covenant there shall be substituted a reference to an agreement or stipulation.

PART V

SUPPLEMENTAL

Rateable
value.

43.—(1) For the purposes of this Act, the rateable value of a dwelling-house on any day shall be ascertained as follows:—

- (a) if the dwelling-house is a hereditament (or, in Scotland, comprises lands and heritages) for which a rateable value is then shown in the valuation list (in Scotland on the valuation roll) it shall be that rateable value;
- (b) if the dwelling-house forms part only of such a hereditament or of such lands and heritages or consists of or forms part of more than one such hereditament, its rateable value shall be taken to be such value as is found by a proper apportionment or aggregation of the rateable value or values so shown.

(2) Any question arising under this section as to the proper apportionment or aggregation of any value or values shall be determined by the county court or, in Scotland, the sheriff and the decision of the county court or sheriff shall be final.

(3) In this Act "the appropriate day" means, in relation to a dwelling-house which on 23rd March 1965 was or formed part of a hereditament for which a rateable value was shown in the valuation list then in force, or consisted or formed part of more than one such hereditament, or, as the case may be, was or formed part of lands and heritages for which a rateable value was shown on the valuation roll then in force, that day, and in relation to any other dwelling-house, the date on which such a value is first shown in the valuation list or on the valuation roll.

(4) Where after the date which is the appropriate day in relation to any dwelling-house the valuation list or valuation roll is altered so as to vary the rateable value of the hereditament

or lands and heritages of which the dwelling-house consists or forms part and the alteration has effect from a date not later than that date, the rateable value of the dwelling-house on the appropriate day shall be ascertained as if the value shown in the valuation list or on the valuation roll on the appropriate day had been the value shown in the list or on the roll as altered.

PART V

(5) The preceding provisions of this section shall apply in relation to any other land as they apply in relation to a dwelling-house.

44. Where an offence under this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager or secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he as well as the body corporate shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly. Offences by corporations.

45. Where an application is made to the sheriff for an order or a determination under this Act it shall be made by way of summary application, and the application shall be conducted and disposed of in like manner as proceedings brought under the Small Debt (Scotland) Acts 1837 to 1889, and the determination of the sheriff on any such application shall be final. Proceedings in Scotland.

46.—(1) The Minister may make regulations— Regulations.
 (a) prescribing the form of any notice, application, register or other document to be given, made or used in pursuance of this Act ;
 (b) regulating the procedure to be followed by rent officers and rent assessment committees ; and
 (c) prescribing anything required or authorised to be prescribed by this Act.

(2) Regulations made under paragraph (b) of the preceding subsection may contain provisions modifying Schedule 3 or Schedule 4 to this Act, but no regulations containing such provisions shall have effect unless approved by a resolution of each House of Parliament.

(3) Regulations made under this section shall be made by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament, except in a case falling within the preceding subsection.

47.—(1) In this Act— Interpretation.
 “ Act of 1920 ” means the Increase of Rent and Mortgage Interest (Restrictions) Act 1920 ;
 Interest (Restrictions) Act 1920 ;

PART V

1933 c. 32.

"Act of 1933" means the Rent and Mortgage Interest Restrictions (Amendment) Act 1933 ;

1954 c. 53.

"Act of 1954" means the Housing Repairs and Rents Act 1954 ;

1948 c. 63.

"agricultural holding" has the same meaning as in the Agricultural Holdings Act 1948 ;

"appropriate day" has the meaning assigned to it by section 43(3) of this Act ;

"contractual period" has the meaning assigned to it by section 1(5) of this Act ;

"improvement" has the meaning assigned to it by section 17 of this Act ;

"landlord", "tenant" and "tenancy" have the same meanings as in the Act of 1920 ;

"the Minister", in the application of this Act to England and Wales, means, subject to section 48 of this Act, the Minister of Housing and Local Government and, in the application of this Act to Scotland, means the Secretary of State ;

"prescribed" means prescribed by regulations under this Act, and references in this Act to a prescribed form include references to a form substantially to the same effect as the prescribed form ;

"rateable value" shall be construed in accordance with section 43 of this Act ;

"rates"—

1930 c. 44.

(a) in England and Wales includes water rates and charges but does not include an owner's drainage rate within the meaning of section 24(2)(a) of the Land Drainage Act 1930,

1947 c. 43.

(b) in Scotland means any charge payable in respect of a rate as defined in the Local Government (Scotland) Act 1947,

and references in this Act to rates in respect of a dwelling-house include references to such proportion of any rates in respect of a hereditament or of lands and heritages of which the dwelling-house forms part as may be agreed in writing between the landlord and the tenant or determined by the county court or sheriff ;

"regulated tenancy" has the meaning assigned to it by section 1(4) of this Act ;

"the Rent Acts" means the Rent and Mortgage Interest Restrictions Acts 1920 to 1939 or any of those Acts ;

“rental period” means a period in respect of which a payment of rent falls to be made ; PART V

“the Scottish Act of 1954” means the Housing (Repairs 1954 c. 50. and Rents) (Scotland) Act 1954 ;

“statutory period” has the meaning assigned to it by section 1(5) of this Act ;

“statutory tenancy” has the same meaning as in the Act of 1954 or, as the case may be, the Scottish Act of 1954.

(2) In the application of this Act to Scotland any provision referring to Schedule 2 to the Rent Act 1957 shall have effect as if that Schedule with the following modifications were part of the law of Scotland :— 1957 c. 25.

(a) for any reference to six weeks there shall be substituted a reference to six months ;

(b) in paragraph 4, for any reference to a proposal there shall be substituted a reference to a question which is the subject of an appeal or complaint duly made in accordance with the provisions of the Lands Valuation (Scotland) Act 1854 and the Acts amending that Act. 1854 c. 91.

(3) References in this Act to any enactment are references to that enactment as amended, and include references thereto as applied, by any other enactment including, except where the context otherwise requires, this Act.

48.—(1) In its application to Wales this Act shall have effect as if for references to the Minister there were substituted references to the Secretary of State, except in so far as this Act relates— Application to Wales.

(a) to any order relating to an area partly outside Wales ;
or

(b) to regulations prescribing anything other than the form of any notice, application or other document, or prescribing the form of any register.

(2) In this section “Wales” includes Monmouthshire.

49.—(1) This Act shall, in its application to the Isles of Scilly have effect subject to such exceptions, adaptations and modifications as the Minister may by order direct. Application to Isles of Scilly.

(2) The power to make an order under this section shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) An order under this section may be varied or revoked by a subsequent order.

PART V
Expenses.

50. There shall be paid out of moneys provided by Parliament any expenses of the Minister under this Act and any increase attributable to this Act in the sums payable out of moneys so provided under any other enactment.

Minor and consequential amendments.

51. The enactments specified in Schedule 6 to this Act shall have effect subject to the amendments specified in that Schedule, being minor amendments and amendments consequential on the provisions of this Act.

Repeals.

52.—(1) The enactments mentioned in Schedule 7 to this Act are hereby repealed to the extent specified in the third column of that Schedule, but those mentioned in Part II of that Schedule only from the day appointed under section 35(5) of this Act.

1964 c. 97.

(2) Any suspension under the Protection from Eviction Act 1964 of the execution of an order for possession or of a decree of removing or warrant of ejection shall, if in force at the commencement of this Act, continue in force and may be terminated as if that Act had not been repealed.

Short title, commencement and extent.

53.—(1) This Act may be cited as the Rent Act 1965.

(2) This Act, except Part II, shall come into force at the expiration of the period of one month beginning with the date on which it is passed.

(3) Sections 10, 22, 23, 31, 41, 48, and 49 of this Act do not extend to Scotland and sections 24 and 45 of this Act extend to Scotland only.

(4) This Act does not extend to Northern Ireland.

SCHEDULES

SCHEDULE 1

Section 1.

AMENDMENT OF THE RENT ACTS IN RELATION TO REGULATED TENANCIES

PART I

AMENDMENTS FOR DETERMINING WHETHER TENANCY IS REGULATED TENANCY

THE INCREASE OF RENT AND MORTGAGE INTEREST (RESTRICTIONS) ACT 1920 (10 & 11 Geo. 5. c. 17)

1.—(1) Subsection (2) of section 12 shall apply as if in the proviso paragraph (ii) were omitted and for paragraph (iii) there were substituted the following—

(iii) for the purposes of this Act any land or premises let together with a dwelling-house shall, unless the land or premises so let consists or consist of agricultural land (within the meaning of section 2 of the Rating and Valuation (Apportionment) Act 1928 or section 8 of the Rent and Mortgage Interest Restrictions Act 1939) exceeding two acres in extent, be treated as part of the dwelling-house; but save as aforesaid, this Act shall not apply to any dwelling-house let together with land other than the site of the dwelling-house. 1928 c. 44. 1939 c. 71.

(2) Subsection (3) of that section shall not apply.

(3) Subsection (7) of that section shall apply as if the reference therein to rateable value were a reference to rateable value on the appropriate day within the meaning of this Act.

(4) Subsections (9) and (10) of that section shall not apply.

THE RENT AND MORTGAGE INTEREST RESTRICTIONS (AMENDMENT) ACT 1933 (23 & 24 Geo. 5. c. 32)

2. For subsection (3) of section 1 there shall be substituted the following subsection—

(3) The principal Acts shall not apply to any dwelling-house consisting of, or comprising, premises licensed for the sale of intoxicating liquor for consumption on the premises.

THE RENT AND MORTGAGE INTEREST RESTRICTIONS ACT 1939 (2 & 3 Geo. 6. c. 71)

3. In section 3(3) the words preceding “for the purposes” shall be omitted.

SCH. 1

PART II

AMENDMENTS OF ACTS IN THEIR APPLICATION TO
REGULATED TENANCIESTHE INCREASE OF RENT AND MORTGAGE INTEREST
(RESTRICTIONS) ACT 1920
(10 & 11 Geo. 5. c. 17)

4. So much of the Act as relates to mortgages shall not apply.

5.—(1) In subsection (2) of section 5 for the reference to the passing of the Act of 1920 there shall be substituted a reference to the commencement of this Act.

(2) Subsection (3) of that section shall not apply.

(3) Subsection (7) of that section shall have effect as if it specified the commencement of this Act instead of the date mentioned therein.

6. Section 14 shall apply as if any sum in respect of rent which is irrecoverable by virtue of this Act were irrecoverable by virtue of the Act of 1920.

THE RENT AND MORTGAGE INTEREST RESTRICTIONS ACT 1923
(13 & 14 Geo. 5. c. 32)

7. So much of the Act as relates to mortgages shall not apply.

8. Section 3 shall not apply.

9. Sections 6(1) and 8(1) shall apply to notices of increase under this Act.

THE RENT AND MORTGAGE INTEREST RESTRICTIONS
(AMENDMENT) ACT 1933
(23 & 24 Geo. 5. c. 32)

10.—(1) Subsections (2) and (3) of section 4 shall not apply.

(2) In subsection (4) of that section for the reference to the date of the passing of the Act of 1933 there shall be substituted a reference to the commencement of this Act.

11. In section 16, in the definition of "recoverable rent", for the words "the principal Acts" there shall be substituted the words "the Rent Act 1965".

12.—(1) In paragraph (d) of Schedule 1 for the reference to the date mentioned therein there shall be substituted a reference to the commencement of this Act.

(2) Paragraph (e) of that Schedule shall not apply.

(3) In paragraph (h) of that Schedule, for the reference to the date mentioned therein there shall be substituted a reference to 23rd March 1965, and after the word "mother" there shall be inserted the words "or the father or mother of his spouse".

**THE INCREASE OF RENT AND MORTGAGE INTEREST (RESTRICTIONS)
ACT 1938 (1 & 2 Geo. 6 c. 26)****SCH. 1**

13. So much of the Act as relates to mortgages shall not apply.

14. Section 7(5) shall apply as if references therein to the principal Acts included references to this Act and shall apply in relation to any document to be served on the landlord of a dwelling-house, whether by the tenant or any other person.

**THE RENT AND MORTGAGE INTEREST RESTRICTIONS ACT 1939
(2 & 3 GEO. 6 C. 71)**

15. Sections 4 and 6 shall not apply.

SCHEDULE 2**Section 25.****RENT ASSESSMENT COMMITTEES**

1. The Minister shall draw up and from time to time revise panels of persons to act as chairmen and other members of rent assessment committees for such areas, comprising together every registration area, as the Minister may from time to time determine.

2. Each panel shall consist of a number of persons appointed by the Lord Chancellor and a number of persons appointed by the Minister and, if the Minister thinks fit, a number of persons appointed by him to act only in case of absence or incapacity of other members of the panel.

3. The Minister shall nominate one of the persons appointed by the Lord Chancellor to act as president of the panel, and one or more such persons to act as vice-president or vice-presidents.

4. Subject to the following provisions of this Schedule, the number of assessment committees to act for any area and the constitution of those committees shall be determined by the president of the panel formed for that area or, in the case of the president's absence or incapacity, by the vice-president or, as the case may be, one of the vice-presidents.

5. Subject to paragraph 6 of this Schedule, each rent assessment committee shall consist of a chairman and one or two other members, and the chairman shall be either the president or vice-president (or, as the case may be, one of the vice-presidents) of the panel or one of the other members appointed by the Lord Chancellor.

6. The president of the panel may, if he thinks fit, direct that when dealing with such cases or dealing with a case in such circumstances as may be specified in the direction the chairman sitting alone may, with the consent of the parties, exercise the functions of a rent assessment committee.

7. There shall be paid to members of panels such remuneration and allowances as the Minister, with the consent of the Treasury, may determine.

8. The president of the panel may appoint, with the approval of the Minister as to numbers, such clerks and other officers and servants of rent assessment committees as he thinks fit, and there shall be paid to the clerks and other officers and servants such salaries and

SCH. 2 allowances as the Minister, with the consent of the Treasury, may determine.

9. The remuneration and allowances of members of panels and the salaries and allowances of clerks and other officers and servants appointed under this Schedule, and such other expenses of a panel as the Treasury may determine, shall be defrayed out of moneys provided by Parliament.

10. In the application of this Schedule to Scotland the following provisions shall have effect in lieu of paragraphs 1 to 5, that is to say,—

- (a) the Secretary of State shall draw up and from time to time revise a panel of persons to act as chairmen and other members of rent assessment committees ;
- (b) there shall be one panel for the registration areas in Scotland ;
- (c) the panel shall consist of a number of persons appointed by the Secretary of State, and, if the Secretary of State thinks fit, a number of persons appointed to act only in case of absence or incapacity of other members of the panel ;
- (d) the Secretary of State shall nominate two of the persons on the panel to act as president and vice-president of the panel ;
- (e) subject to the following provisions of this Schedule, the number of assessment committees to act for any registration area and the constitution of those committees shall be determined by the president of the panel or, in the case of the president's absence or incapacity, by the vice-president ;
- (f) subject to paragraph 6 of this Schedule, each rent assessment committee shall consist of a chairman and one or two other members.

Section 26.

SCHEDULE 3

REGISTRATION OF RENTS

Application for registration

1. An application for the registration of a rent for a dwelling-house may be made to the rent officer by the landlord or the tenant, or jointly by the landlord and the tenant, under a regulated tenancy of the dwelling-house.

2. Any such application must be in the prescribed form and contain the prescribed particulars in addition to the rent which it is sought to register.

3. Where a rent for any dwelling-house has been registered under this Act no application by the tenant alone or by the landlord alone for the registration of a different rent for that dwelling-house shall be entertained before the expiration of a period of three years from the following date, that is to say—

- (a) where on an application for the registration of a different rent the registered rent has been confirmed, the date of that application (or if more than one the last of them) ;

(b) in any other case, the date on which the registration took effect;

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except on the ground that since that date there has been such a change in the condition of the dwelling-house (including the making of any improvements therein), the terms of the tenancy or any other circumstances taken into consideration when the rent was registered or confirmed as to make the registered rent no longer a fair rent.

Procedure on applications to rent officer

4. On receiving any application for the registration of a rent the rent officer may, by notice in writing served on the landlord or the tenant (whether or not the applicant or one of the applicants) require him to give to the rent officer, within such period not less than seven days from the service of the notice as may be specified in the notice, such information as he may reasonably require regarding such of the particulars contained in the application as may be specified in the notice.

5. Where the application is made by the landlord alone the rent officer shall serve on the tenant, and where it is made by the tenant alone he shall serve on the landlord, a notice informing him of the application and specifying a period, not less than seven days from the service of the notice, during which representations in writing may be made to the rent officer against the registration of the rent specified in the application.

6. Where—

(a) the application is made jointly by the landlord and the tenant, or

(b) no representations are made as mentioned in the preceding paragraph,

and it appears to the rent officer, after making such inquiry, if any, as he thinks fit and considering any information supplied to him in pursuance of paragraph 4 of this Schedule, that the rent specified in the application is a fair rent, he may register that rent without further proceedings, and if he does so he shall notify the landlord and the tenant accordingly.

7. Where representations are made as mentioned in paragraph 5 of this Schedule or the rent officer is not satisfied that the rent specified in the application is a fair rent (or that the rent for the time being registered is no longer a fair rent) he shall serve a notice on the landlord and on the tenant informing him that he proposes, at a time (which shall not be earlier than seven days after the service of the notice) and place specified in the notice to consider in consultation with the landlord and the tenant, or such of them as may appear at that time and place, what rent ought to be registered for the dwelling-house or, as the case may be, whether a different rent ought to be registered; and at any such consultation the landlord and tenant may each be represented by a person authorised by him in that behalf, whether or not that person is of counsel or a solicitor.

SCH. 3

8. After considering, in accordance with the preceding paragraph, what rent ought to be registered or, as the case may be, whether a different rent ought to be registered, the rent officer shall, as the case may require,—

- (a) determine a fair rent and register it as the rent for the dwelling-house ; or
- (b) confirm the rent for the time being registered and note the confirmation in the register ;

and shall notify the landlord and the tenant accordingly by a notice stating that if, within twenty-eight days of the service of the notice or such longer period as he or a rent assessment committee may allow, an objection in writing is received by the rent officer from the landlord or the tenant the matter will be referred to a rent assessment committee.

9.—(1) If such an objection is received, then—

- (a) if it is received within the said twenty-eight days or a rent assessment committee so direct, the rent officer shall refer the matter to a rent assessment committee ;
- (b) if it is received after the said twenty-eight days, the rent officer may either refer the matter to a rent assessment committee or seek the directions of a rent assessment committee whether so to refer it.

(2) The rent officer shall indicate in the register whether the matter has been referred to a rent assessment committee in pursuance of this paragraph.

Determination of fair rent by rent assessment committee

10. The rent assessment committee to whom a matter is referred under paragraph 9 of this Schedule may by notice in the prescribed form served on the landlord or the tenant require him to give to the committee, within such period, not less than fourteen days from the service of the notice, as may be specified in the notice, such further information, in addition to any given to the rent officer in pursuance of paragraph 4 of this Schedule, as they may reasonably require and shall serve on the landlord and on the tenant a notice specifying a period, not less than fourteen days from the service of the notice, during which either representations in writing or a request to make oral representations may be made by him to the committee.

11. Where within the period specified under the preceding paragraph, or such further period as the committee may allow, the landlord or the tenant requests to make oral representations the committee shall give him an opportunity to be heard either in person or by a person authorised by him in that behalf, whether or not that person is of counsel or a solicitor.

12. The committee shall make such inquiry, if any, as they think fit and consider any information supplied or representation made to them in pursuance of paragraph 10 or paragraph 11 of this Schedule and—

- (a) if it appears to them that the rent registered or confirmed by the rent officer is a fair rent, they shall confirm that rent ;

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(b) if it does not appear to them that that rent is a fair rent, they shall determine a fair rent for the dwelling-house ; and shall notify the landlord and the tenant and the rent officer accordingly ; and on receiving the notification the rent officer shall, as the case may require, either indicate in the register that the rent has been confirmed or register the rent determined by the committee as the rent for the dwelling-house.

Effect of registration

13. The registration of any rent for a dwelling-house shall take effect as from the date of the application for the registration, unless the rent officer or, as the case may be, the rent assessment committee, determine that it shall take effect as from a later date.

14. The date from which the registration takes effect shall be entered in the register and as from that date any previous registration of a rent for the dwelling-house shall cease to have effect.

15. Where a valid notice of increase has been served on a tenant and, in consequence of the registration of a rent, part but not the whole of the increase specified in the notice becomes irrecoverable from the tenant, the registration shall not invalidate the notice, but the notice shall, as from the date from which the registration takes effect, have effect as if it specified such part only of the increase as has not become irrecoverable.

Applications supported by certificates of fair rent

16.—(1) Where a certificate of fair rent has been issued in respect of a dwelling-house, an application for the registration of a rent for the dwelling-house in accordance with the certificate may be made within three years of the date of the certificate either—

- (a) by the landlord under such a regulated tenancy of the dwelling-house as is specified in the certificate, or
- (b) by a person intending to grant such a regulated tenancy of the dwelling-house ;

and the following provisions of this paragraph shall have effect, in lieu of paragraphs 4 to 12 of this Schedule, with respect to an application so made.

(2) On receiving such an application the rent officer shall ascertain whether the works specified in the certificate have been carried out in accordance with the plans and specifications which accompanied the application for the certificate or, as the case may be, whether the condition of the dwelling-house is the same as at the date of the certificate and—

- (a) if he is satisfied that the works have been so carried out or, as the case may be, the dwelling-house is in that condition he shall register the rent in accordance with the certificate ;
- (b) if he is not so satisfied he shall serve on the applicant a notice stating the matters with respect to which he is not so satisfied and informing him that if within fourteen days from the service of the notice or such longer period as the

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rent officer or a rent assessment committee may allow the applicant makes a request in writing to that effect the rent officer will refer the matter to a rent assessment committee.

(3) If such a request is made, then—

- (a) if it is made within the said fourteen days or a rent assessment committee so direct, the rent officer shall refer the matter to a rent assessment committee ;
- (b) if it is made after the said fourteen days, the rent officer may either refer the matter to a rent assessment committee or seek the directions of a rent assessment committee whether so to refer it.

(4) The rent assessment committee to whom a matter is referred under this paragraph shall give the applicant an opportunity to make representations in writing or to be heard either in person or by a person authorised by him in that behalf, whether or not that person is of counsel or a solicitor and, after considering any representations made under this paragraph, they shall notify the rent officer and the applicant whether they are satisfied as mentioned in sub-paragraph (2) of this paragraph and shall—

- (a) if they are so satisfied direct the rent officer to register the rent in accordance with the certificate ;
- (b) if not so satisfied direct the rent officer to refuse the application for registration.

(5) Where a rent is registered in pursuance of an application made under this paragraph by a person who intends to grant a regulated tenancy the registration shall be provisional only until the regulated tenancy is granted and shall be of no effect unless the rent officer is notified in the prescribed manner within one month from the date of the registration or such longer time as the rent officer may allow that the regulated tenancy has been granted.

(6) Where a registration is made as mentioned in the preceding sub-paragraph the rent officer shall indicate in the register that it is so made and—

- (a) if he is notified as mentioned in that sub-paragraph that the regulated tenancy has been granted he shall indicate that fact in the register ;
- (b) if he is not so notified he shall delete the registration.

Dwelling-houses improved with assistance of local authorities

17.—(1) The following provisions of this paragraph shall apply where a condition relating to rent has been imposed as respects any dwelling-house under section 33 of the Housing (Financial Provisions) Act 1958 or that section as extended by section 7 of the House Purchase and Housing Act 1959, or under section 114(1) of the Housing (Scotland) Act 1950 or that section as extended by section 22 of the said Act of 1959.

(2) If no rent for the dwelling-house is registered under this Act, no application for the registration of such a rent shall be entertained while the said condition is in operation.

1958 c. 42.

1959 c. 33.

1950 c. 34.

(3) If a rent differing from the limit imposed by the said condition is registered for the dwelling-house under this Act, paragraphs 4 to 12 of this Schedule shall not apply in relation to an application for the registration of a rent equal to that limit made by the landlord under a regulated tenancy of the dwelling-house, but on an application so made the rent officer shall register the said rent.

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(4) If the limit imposed by the said condition includes an amount in respect of any rates borne or to be borne by the landlord or a superior landlord the said limit shall be treated for the purposes of this paragraph as reduced by that amount.

Subsidised dwelling-houses

18. Where a condition as to rent has been imposed as respects any dwelling-house under any of the enactments mentioned in section 10(2) or 20(1) of the Rent Act 1957 or section 18 of this Act 1957 c. 25. no application for the registration of a rent for the dwelling-house shall be entertained while the condition is in operation.

SCHEDULE 4

Section 26.

CERTIFICATES OF FAIR RENT

1. A person intending—

- (a) to provide a dwelling-house by the erection or conversion of any premises or to make any improvements in a dwelling-house, or
- (b) to let on a regulated tenancy a dwelling-house which is not for the time being subject to such a tenancy and which satisfies the condition that either no rent for it is registered under this Act or that not less than three years have elapsed since the date mentioned in paragraph 3 of Schedule 3 to this Act,

may apply to the rent officer for a certificate, to be known as a certificate of fair rent, specifying a rent which in the opinion of the rent officer would be a fair rent under a regulated tenancy of the dwelling-house or, as the case may be, of the dwelling-house after the erection or conversion or after the completion of the improvements.

2. The said regulated tenancy shall be assumed to be a tenancy on such terms as may be specified in the application and, except in so far as other terms are so specified, on the terms that the tenant would be liable for internal decorative repairs but no others and no services or furniture would be provided for him.

3. An application under paragraph 1 of this Schedule must be in the prescribed form, must state the rent to be specified in the certificate and (except in the case mentioned in sub-paragraph (b) of that paragraph) must be accompanied by plans and specifications of the works to be carried out and, if the works to be carried out are works of improvement, must state whether the dwelling-house is for the time being subject to a regulated tenancy.

4.—(1) If it appears to the rent officer that the information supplied to him is insufficient to enable him to issue a certificate of fair rent he shall serve on the applicant a notice stating that he will not

SCH. 4 entertain the application and that, if a request in writing to that effect is made by the applicant within fourteen days from the service of the notice or such longer period as the rent officer or a rent assessment committee may allow, the rent officer will refer the application to a rent assessment committee.

(2) If such a request is made, then—

(a) if it is made within the said fourteen days or a rent assessment committee so direct, the rent officer shall refer the application to a rent assessment committee;

(b) if it is made after the said fourteen days, the rent officer may either refer the application to a rent assessment committee or seek the directions of a rent assessment committee whether so to refer it.

5. If it appears to the rent officer that the information supplied to him is sufficient and that the rent stated in the application would be a fair rent he may, unless the dwelling-house is subject to a regulated tenancy, issue a certificate specifying that rent and the other terms referred to in paragraph 2 of this Schedule.

6. If it appears to the rent officer that the information is sufficient but either he is not satisfied that the rent stated in the application would be a fair rent or the dwelling-house is subject to a regulated tenancy, he shall serve on the applicant a notice stating that he proposes, at a time (which shall not be earlier than seven days after the service of the notice) and place specified in the notice, to consider in consultation with the applicant, if present at that time and place, what rent ought to be specified in the certificate; and at any such consultation the applicant may be represented by a person authorised by him in that behalf, whether or not that person is of counsel or a solicitor.

7. After considering in accordance with the preceding paragraph what rent ought to be specified in the certificate the rent officer shall determine a fair rent and shall serve on the applicant a notice stating that he proposes to issue a certificate specifying that rent, unless within fourteen days from the service of the notice, or such longer period as the rent officer or a rent assessment committee may allow, the applicant requests in writing that the application should be referred to a rent assessment committee.

8.—(1) If such a request is made, then—

(a) if it is made within the said fourteen days or a rent assessment committee so direct, the rent officer shall refer the application to a rent assessment committee;

(b) if it is made after the said fourteen days, the rent officer may either refer the application to a rent assessment committee or seek the directions of a rent assessment committee whether so to refer it.

(2) If no such request is made or if such a request is made but the application is not referred to a rent assessment committee the rent officer shall issue the certificate.

9. Where an application is referred to a rent assessment committee, then if the reference is under paragraph 4 of this Schedule and it appears to the committee that the information supplied by the

applicant to the rent officer is insufficient to enable a certificate of fair rent to be issued they shall notify the applicant accordingly.

SCH. 4

10. In any other case they shall serve on the applicant a notice specifying a period, not less than fourteen days from the service of the notice, during which either representations in writing or a request to make oral representations may be made by him to the committee.

11. Where within the period specified under the preceding paragraph, or such further period as the committee may allow, the applicant requests to make oral representations, the committee shall give him an opportunity to be heard either in person or by a person authorised by him in that behalf, whether or not that person is of counsel or a solicitor.

12. After considering any representation made to them in pursuance of paragraph 10 or paragraph 11 of this Schedule the committee shall determine a fair rent for the dwelling-house and shall notify the applicant and the rent officer accordingly; and on receiving the notification the rent officer shall issue to the applicant a certificate of fair rent specifying the rent determined by the committee.

13. Where an application under this Schedule is made with respect to a dwelling-house which it is intended to improve and the dwelling-house is subject to a regulated tenancy—

- (a) a notice under paragraph 6, 7, 10 or 12 of this Schedule shall be served on the tenant as well as on the applicant and any notice served under the said paragraph 6, 7 or 10 shall refer to consultation with, or, as the case may be, a request or representations by, the tenant as well as the applicant;
- (b) the tenant may make representations, request reference to a rent assessment committee and be present or represented in like manner as the applicant, and references in this Schedule to the applicant shall be construed accordingly;
- (c) a copy of any certificate of fair rent issued in pursuance of the application shall be sent to the tenant.

SCHEDULE 5

Section 37.

PREMIUMS

PART I

AMENDMENT OF SECTION 2 OF LANDLORD AND TENANT (RENT CONTROL) ACT 1949 (12, 13 & 14 Geo. 6. c. 40)

1. For subsection (1) there shall be substituted the following subsection—

(1) A person shall not—

(a) as a condition of the grant, renewal or continuance of a tenancy to which this section applies, require the payment of any premium; or

(b) in connection with such a grant, renewal or continuance, receive any premium;

in addition to the rent.

SCH. 5

2. At the end of subsection (2) there shall be inserted the words "or in connection with such an assignment receive any premium".

3. In subsection (4) after the words "require the payment by the assignee" there shall be inserted the words "or receive from the assignee a payment".

4. In subsection (5) after the words "could not lawfully be required", in both places where they occur, there shall be inserted the words "or received".

5. In subsection (6) after the word "requiring" there shall be inserted the words "or receiving" and after the word "required" there shall be inserted the words "or received".

PART II

AMENDMENT OF PARAGRAPH 5 OF SCHEDULE 1 TO LANDLORD AND TENANT (RENT CONTROL) ACT 1949 (12, 13 & 14 Geo. 6. c. 40)

6. In sub-paragraph (1) the words "before the commencement of this Act" shall be omitted, after the words "and paid" in paragraph (a) there shall be inserted the words "or has been lawfully received", after the words "subject to the provisions of this paragraph" there shall be inserted the words "and of Part III of Schedule 5 to the Rent Act 1965" and after the words "the requiring" there shall be inserted the words "or receiving".

PART III

FURTHER PROVISIONS APPLICABLE TO REGULATED TENANCIES

1949 c. 40.

7.—(1) In relation to a regulated tenancy sub-paragraph (3) of paragraph 5 of Schedule 1 to the Landlord and Tenant (Rent Control) Act 1949 shall not apply and the relevant date for the purposes of sub-paragraph (2) of that paragraph (which determines the proportion of the premium paid on the grant, continuance or renewal of a tenancy which may be required or received on an assignment thereof) shall be ascertained in accordance with the following provisions of this paragraph (which restate the effect of paragraphs 6 and 7 of that Schedule so far as applicable).

(2) Where the tenancy was granted, continued or renewed for a term of years certain exceeding seven years and that term has not expired when the assignment takes effect, the relevant date shall be the date of the expiration of that term.

(3) In any other case the relevant date shall be the date of the expiration of seven years from the commencement of the term, or the continuance or renewal of the term, in respect of which the premium was paid.

(4) For the purposes of this paragraph, a term of years shall be deemed to be certain notwithstanding that it is liable to determination by re-entry or on the happening of any event other than the giving of notice by the landlord to determine the term; and a term of years determinable by the giving of such a notice by the landlord shall be deemed to be a term of years certain expiring on the earliest date on which such a notice given after the date of the assignment would be capable of taking effect.

(5) In the application of this paragraph to Scotland, for sub-paragraphs (2) to (4) there shall be substituted the following sub-paragraphs—

“(2) Where at the date when the assignation takes effect the tenancy granted, continued or renewed is for a specified period exceeding seven years and that period has not terminated, the relevant date shall be the termination of that period.

(3) In any other case the relevant date shall be the date of the expiration of seven years from the commencement of the tenancy, or the continuance or renewal of the tenancy, in respect of which the premium was paid.

(4) The provisions of this paragraph shall apply to a tenancy for a specified period exceeding seven years notwithstanding that it is liable to be terminated by re-entry or on the happening of any event other than the giving of notice by the landlord to terminate the tenancy; and where a tenancy may be terminated by the giving of such notice by the landlord it shall be deemed to be a tenancy for a specified period expiring on the earliest date on which such a notice given after the date of the assignation would be capable of taking effect.”

8.—(1) If the dwelling-house which is the subject of the regulated tenancy is in an area in which Part II of this Act is in force the said paragraph 5 shall not apply unless—

(a) a rent for the dwelling-house is registered under this Act, and

(b) the rent so registered is higher than the rent payable under the tenancy.

(2) If the registered rent is higher than the rent payable under the tenancy but the lump sum equivalent of the difference is less than the premium, sub-paragraph (2) of the said paragraph 5 shall have effect as if the amount of the premium had been that lump sum equivalent.

(3) For the purposes of this paragraph the lump sum equivalent of the difference shall be taken to be that difference multiplied by the number of complete rental periods falling within the period beginning with the grant, continuance or renewal in respect of which the premium was paid and ending with the relevant date, as ascertained in accordance with paragraph 7 of this Schedule.

(4) Where any rates in respect of the dwelling-house are borne by the landlord or a superior landlord, the amount of the registered rent shall be taken for the purposes of this paragraph as increased by the amount of the rates so borne in respect of the rental period comprising the date from which the registration took effect.

SCHEDULE 6

Section 51.

MINOR AND CONSEQUENTIAL AMENDMENTS

1. In section 111 of the Inclosure Act 1845, for the words from 1845 c. 118. “according” to the end of the section there shall be substituted the words “by proceedings in the county court”.

SCH. 6
1852 c. 79.

2. In section 13 of the Inclosure Act 1852, for the words from "under the provisions" to "the said last-mentioned Act" there shall be substituted, as from the day appointed under section 35(5) of this Act, the words "by proceedings in the county court".

1933 c. 32.

3. In sections 10 and 11 of the Rent and Mortgage Interest Restrictions (Amendment) Act 1933 the references to the principal Act shall be deemed to include references to this Act.

1949 c. 40.

4. In section 11(1) of the Landlord and Tenant (Rent Control) Act 1949, after the words "a notice to quit has been served" there shall be inserted the words "(whether it was served before or after the reference)", and at the end of the proviso there shall be added the words "or have made a direction under subsection (7) of section 39 of the Rent Act 1965".

1951 c. 65.

5.—(1) In section 15(1) of the Reserve and Auxiliary Forces (Protection of Civil Interests) Act 1951, after the words "the said section 11" there shall be inserted the words "and section 39(7) of the Rent Act 1965".

(2) In section 16(2)(a) of that Act, for the words "the Rent Act of 1939" there shall be substituted the words "the Rent Act 1965" and for the words "section 3" the words "section 1".

(3) Subsections (1) to (3) of section 22 of that Act shall apply in relation to any proceedings under this Act and shall, in relation to any proceedings before a rent officer or rent assessment committee, have effect as if the references to the court or tribunal included references to a rent officer or rent assessment committee.

1954 c. 50.

6. In section 25(2) of the Housing (Repairs and Rents) (Scotland) Act 1954 at the end of paragraph (b) the word "or" shall be omitted and after paragraph (c) there shall be inserted the following—

"or

(d) the premises comprised in the tenancy were provided by the housing association by means of advances from the Secretary of State to the housing association under section 11 of the Housing (Scotland) Act 1962, or by means of loans made by the Housing Corporation under Part I of the Housing Act 1964."

1962 c. 28.

1964 c. 56.

7. In section 30(2) of the Housing (Repairs and Rents) (Scotland) Act 1954 after the word "required" in paragraphs (a), (b) and (d) there shall be inserted the words "or received".

1954 c. 53.

8. In section 39(2) of the Housing Repairs and Rents Act 1954, after the word "required" in paragraphs (a), (b) and (d), there shall be inserted the word "or received".

1957 c. 25.

1949 c. 60.

1965 c. 16.

9.—(1) In section 5(3) of the Rent Act 1957 after the words "Housing Act 1949" there shall be inserted the words "or a grant has been made in respect of the improvement under section 15 of the Airports Authority Act 1965".

(2) In section 5(4) of the Rent Act 1957 after the words "section 20" there shall be inserted the words "or under the said section 15".

1957 c. 56.

10.—(1) As from the day appointed under section 35(5) of this Act the Housing Act 1957 shall have effect subject to the following amendments.

(2) In sections 22(2), 45(3) and 73(2) for the words from "make Sch. 6 complaint" to "like effect" there shall be substituted the words "apply to the county court and thereupon the court shall" and for the word "complainant" there shall be substituted the word "applicant".

(3) In section 85(2) for the words from "make complaint" to "like effect" there shall be substituted the words "apply to the county court and thereupon the court shall".

11. In paragraph (b) of section 94(1) of the County Courts Act 1959 c. 22. 1959 the word "or" shall be omitted and at the end of the paragraph there shall be inserted the words "or the Rent Act 1965".

12. In section 12(1) of the House Purchase and Housing Act 1959 1959 c. 33. the reference to a controlled tenancy shall be construed as not including a regulated tenancy.

13. In section 15 of the Housing (Scotland) Act 1962 references 1962 c. 28. to a controlled tenancy shall be construed as not including a regulated tenancy.

14. In section 56(2) of the Housing Act 1964 the reference to a 1964 c. 56. controlled tenancy shall be construed as not including a regulated tenancy.

Section 52.

SCHEDULE 7

ENACTMENTS REPEALED

PART I

ENACTMENTS REPEALED FROM COMMENCEMENT OF ACT

Chapter	Short title	Extent of repeal
6 & 7 Geo. 6. c. 44.	The Rent of Furnished Houses Control (Scotland) Act 1943.	Section 10(2).
9 & 10 Geo. 6. c. 34.	The Furnished Houses (Rent Control) Act 1946.	Section 13(3).
12, 13 & 14 Geo. 6. c. 40.	The Landlord and Tenant (Rent Control) Act 1949.	In Schedule 1, in paragraph 5(1) the words "before the commencement of this Act".
14 & 15 Geo. 6. c. 65.	The Reserve and Auxiliary Forces (Protection of Civil Interests) Act 1951.	In section 16(2), paragraph (bb).
2 & 3 Eliz. 2. c. 50.	The Housing (Repairs and Rents) (Scotland) Act 1954.	Section 27(3).
2 & 3 Eliz. 2. c. 53.	The Housing Repairs and Rents Act 1954.	Section 35(3).
5 & 6 Eliz. 2. c. 25.	The Rent Act 1957.	In section 11, subsection (3), and in subsection (7) the words "or (3)". Section 12. Section 13(2). In Schedule 4, in paragraph 1, the words "subsection (1) or (3) of", and paragraph 13. In Schedule 5, in paragraph 2 (1) the words "or an order made under subsection (3) thereof", paragraph 2 (2) (b), in paragraph 3 (1) head (b) and the word "and" preceding head (b), paragraph 4, in paragraph 5 (d) the words "or in an order under subsection (3) of that section;" and paragraph 15. In Schedule 6, in paragraph 8(3), the words "or subsection (3)", paragraph 25(1) and, in paragraph 25 (2), the words "or any order thereunder" and the words from "or the date" to the end.
1964 c. 56.	The Housing Act 1964.	In section 72, subsection (3), in subsection (4) the words "and (3)", subsections (5) and (6); and, in paragraph (d) of subsection (7), the words "(3)", the words "and (5)", the words from "(3) Subject" to "both" and the words "and (3)".
1964 c. 97.	The Protection from Eviction Act 1964.	The whole Act except section 5.

PART II

SCH. 7

ENACTMENTS REPEALED FROM DAY APPOINTED
UNDER SECTION 35(5)

Chapter	Short title	Extent of repeal
1 & 2 Vict. c. 74.	The Small Tenements Recovery Act 1838.	The whole Act.
4 & 5 Vict. c. 38.	The School Sites Act 1841	Section 18 so far as it applies to England and Wales.
15 & 16 Vict. c. 79.	The Inclosure Act 1852.	The Schedule.
22 Vict. c. 12.	The Defence Act 1859.	In section 5, the words from "under the Small Tenements Recovery Act", in the first place where they occur, to "or such possession may be recovered", and the words from "and in proceeding", in the first place where they occur, to "fit to name".
62 & 63 Vict. c. 44.	The Small Dwellings Acquisition Act 1899.	In section 5(5) the word "either", in the first place where it occurs, the words from "or under" to "1838" and the words "in either case".
10 & 11 Geo. 5. c. 17.	The Increase of Rent and Mortgage Interest (Res- trictions) Act 1920.	In section 5(4) (as substituted by section 4 of the Rent and Mortgage Interest Restric- tions Act 1923) the words preceding "every warrant", the words "or to enter and give possession of", the words from "or, in the case" to "issue of the warrant" and the words "in either case".
16 & 17 Geo. 5. c. 52.	The Small Holdings and Allotments Act 1926.	In section 7(5) the word "either", in the first place where it occurs, the words from "or under" to "1838" and the words "in either case".
12, 13 & 14 Geo. 6. c. 51.	The Legal Aid and Advice Act 1949.	In Part I of Schedule 1, para- graph 3(c).
12, 13 & 14 Geo. 6. c. 67.	The Civil Aviation Act 1949.	Section 31(2).
5 & 6 Eliz. 2. c. 56.	The Housing Act 1957.	Section 158(2).
10 & 11 Eliz. 2. c. 38.	The Town and Country Planning Act 1962.	Section 84(4).
1965 c. 59.	The New Towns Act 1965.	Section 22(4).